

NOTICE INVITING TENDER (NIT) (CONTD/-)

1.	Name of Work	REPAIR TO REFRIGERATOR, WINDOW/SPLIT TYPE AC, WATER COOLER, DESERT COOLER, VOLTAGE STABILIZER AND DEEP FREEZER AT MIL STN SHAHJAHANPUR CANTT UNDER GE (EAST) BAREILLY												
2.	Estimated Cost	Rs. 13,50,000.00												
3.	Period of Completion	180 Days												
4.	Cost of tender documents	Rs. 500.00 in the form of DD/ Bankers Cheque from any Schedule Bank in favour of GE (East) Bareilly and payable at Bareilly (Note: in case of retendering, the contractor who had quoted in the previous call is not required to submit the cost of tender)												
5.	Website/ portal address	www.defproc.gov.in												
6.	Type of contract	Tender Shall be based on drawing and specifications (IAFW-2159)/IAFW-1779A and GCC (IAFW-2249) with Schedule 'A' (List of items of work) to be priced by contractor/pre-priced by MES. The contractor is required to quote the lump sum amounts for parts of Schedule 'A' and quote rates against items of other parts of Schedule 'A'.												
7.	Timeline details:	Please refer www.defproc.gov.in पुनरीक्षित VETTED कार्यालय संयुक्त एकीकृत वित्तीय सहायक (सेना) बरेली												
	(a) Published date													
	(b) Bid submission start date													
	(c) Bid submission end date													
	(d) Date of bid opening													
8.	Eligibility Criteria													
	(A) For MES enlisted contractors	Contractor shall be enlisted with MES in Class 'D' and category c (i) subject to satisfactory remarks wrt performance in respect of wks in hand as reflected in work load return (WLR) or any other report circulated by competent engineer authority.												
	(B) For contractors not enlisted with MES	(i) Contractor not enlisted with MES should meet the enlistment criteria of 'D' Class & c (i) category contractor with regard to satisfactorily completion of requisite value works with Central/State Government/Central/State PSUs/AWHO/AFNHB/CGEWHO/DGMAP, annual turnover, bank solvency, working capital and other requirements given in Para 1.4 & 1.5 of section 1 of MES Manual of Contracts 2020 as available in all MES formations as well as MES website (www.defproc.in). (ii) Not carrying adverse remarks in Work Load Report (WLR) or any other similar report circulated by any competent authority, if already working in MES. (iii) Not suspended/debarred/blacklisted (either permanently or temporarily) from participating in any bid or for business dealings by any Central/State Government Department of any Central/State Government PSU or any autonomous Body under Central /State Government or any Local Body as on the bid submission end date. (iv) Details of works completed and under progress in MES be submitted in the following format:- <table><tr><td>Srl No.</td><td>CA NO. & Name of Work</td><td>Value of CA</td><td>Date of Commencement</td><td>Date of Completion</td><td>Extended Date of Completion</td></tr><tr><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>	Srl No.	CA NO. & Name of Work	Value of CA	Date of Commencement	Date of Completion	Extended Date of Completion						
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Contd..

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

		(v) Un-enlisted Contractor who have secured two works in MES should get themselves registered in the appropriate designated Class with any Registering Authority, else the firm will not be eligible for participation in the tender unless until the firm is enlisted with the MES.
9.	Tender issuing and Accepting Officer	Name : Lt Col Deepak Singh Bohra Address: Garrison Engineer East Bareilly Military Engineer Services Shahjahanpur Road, Bareilly Cantt. Contact Details:- Phone No. 0581- 2970509 email id- geeastbarielly@gmail.com
10.	Executing agency	GE (East) Bareilly
11.	Earnest Money	Rs 27,000/- in favour of GE (East) Bareilly in the form of Deposit at call receipt, FDR not acceptable.
12.	Performance Security and Defect Liability Period	Within 28 days of acceptance of tender contractor shall deliver to the Accepting Officer a Performance Security @ 5% of the contract sum in the form of Bank Guarantee/Govt Securities /FDR or any other Govt instrument's as per condition 19 of IAFW-2249 and Defect Liability Period of the work is 01 (One) years from the actual date of completion in terms of condition 46 (b) of IAFW-2249.

Notes:

1. In case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well as un-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT is less than 7 (Seven), applications in respect of MES contractors of one class or two classes (In case of remote and difficult areas to be decided as per list circulated by CE commend / ADG) below the eligible class shall also be considered subject to fulfillment of other eligibility criteria given in the NIT. Therefore, MES contractors one class below (Two classes below in case of remote and difficult area) may also bid for this tender. Such contractors (contractors of one / two classes below the eligible class) shall not be considered in case their present residual work in hand is more than FIVE TIME their present tendering limit. However, in case such contractors fulfill the criteria of upgradation to the stipulated eligible class based on past experience of completed works (individual work experience and/ or average annual turnover, as applicable) and financial soundness (solvency/ financial soundness and working capital), the ceiling of present residual work will not apply and they will be considered for issue of tender. Such bidders shall upload in their Cover-I bid details related to residual work in hand like details of works in hand showing names of work, names of Accepting Officers, Contract amounts, dates of commencement and completion (stipulated) and progress as on bid submission date. Such contractors, if claim to fulfill the criteria of upgradation shall also upload the requisite information/ documents in support of upgradation. These details shall be verified by the tender issuing authority from concerned formations in case bids of such contractors are considered for evaluation.

2. In case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well as un-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT, are 7 (Seven) or more, applications of only those one class below the eligible class bidders shall be considered, who have previously completed similar works satisfactorily and are meeting the criteria of up gradation in respect of past experience of completed works (Individual work experience and/ or average annual turnover as applicable) and financial soundness (solvency/financial soundness and working capital) as per details given in Manual on Contracts. Therefore, such contractors shall upload the requisite information/documents in the Cover-1.

3. Un-enlisted contractor shall be considered provided he meets the criteria. Foreign firms shall not be eligible for this tender. However Indian Firms having foreign national / Indian nationals staying abroad / Indian national having taken foreign citizenship, as director(s) shall be considered subject to security clearance from the concerned authorities.

4. Contractor's enlisted with MES will upload following documents in Cover 1 for checking eligibility: -

- Application for tender on Firm's Letterhead.
- Enlistment letter issued by the Registering Authority duly renewed for the cycle period in vogue.

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- (c) Scanned copy of DD / Bankers Cheque toward cost of tender and EMD instrument in case SSD bond is not signed at the time of registration.
- (d) Any other documents required as described in this Appendix.
5. Contractors not enlisted with MES will be required to upload following documents in Cover 1 for checking eligibility.
- (a). Application for tender on Firm's letterhead.
- (b). Scanned copy of DD/ Bankers cheque toward cost of tender and Earnest Money Deposit (EMD) instrument.
- (c). Copy of Police Verification Report/Police Clearance Certificate/ Character Certificate from the Police Authority of the area where the registered office of the firm is located/notarized copy of valid passport of Proprietor/each Partner/each Director.
- (d). All documents required for enlistment in MES for the class mentioned in Para 8(b) Above and as per Para 1.5 of Section 1 of MES Manual on Contract 2020.
- (e). Details of works being executed in MES, if any.
- (f). Any other documents required as described in this Appendix.
6. Tenders not accompanied by scanned copies of requisite DD/Bankers Cheque towards cost of tender and earnest money (as applicable) in Cover I shall not be considered for validation of 'T' bid and their Financial Bids will not be opened.
7. Contractors should ensure that their original physical DDs and Earnest Money Deposit (EMD) instruments (as applicable) reach in the office of Accepting Officer **within 07 days** from the date of bid submission end date, failing which following action will be taken against the defaulter bidders: -
- (a) In case of tenders from an enlisted contractor of MES, where scanned copies of requisite DD / Bankers Cheque towards cost of tenderer have been uploaded in Cover 1 but physical copies are not received within the stipulated period, their financial bids (Cover 2) will be opened. However non-submission of physical copies of cost of tender shall be considered as willful negligence of the tenderer with ulterior motives and such tenderer shall be banned from bidding for a period of **six months commencing from the date of opening of Financial Bid** (Cover 2).
- (b) In case of tenders from un-enlisted contractor, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover 1 but physical copies are not received within the stipulated period, their financial bids (Cover 2) will not be opened. Name of such contractors along with complete address shall be circulated for not opening of their bids for a period of six months commencing from the date of opening of Financial bid (Cover 2).
- (c) In case of tenders from enlisted and un-enlisted contractors, where scanned copies of instruments for Earnest Money Deposit (as applicable) have been uploaded in Cover I but the same are not received in physical form within stipulated period, such tenders shall not qualify for opening of financial bid (Cover 2).
8. Contractor will not be allowed to execute the work by subletting or through power of attorney to a third party/another firm on his behalf. However, a contractor can execute the work through power of attorney to sons / daughters / spouse of Proprietor/Partner/Director and firm's own employees, director, project manager **provided they are not having a separate enlisted firm in MES in their name as Proprietor/Partner/Director.**
9. After opening of Cover I and during its technical evaluation, in case any deficiency is noticed in the documents required to be uploaded by the tenderers as per NIT, a communication in the form of e-mail/SMS/Speed Post etc shall be sent to the contractor to rectify the deficiency within a period of seven days from date of communication failing which their financial bid (Cover 2) shall not be opened and contractor shall not have any claim on the same.

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10. Invitation for e-tender does not constitute any guarantee for validation of technical bid and subsequent opening of financial bid of any applicant /bidder merely by virtue of enclosing DD. Accepting Officer reserves the right to reject the technical bid and not to open the financial bid of any applicant /bidder, technical bid validation shall be decided by the Accepting Officer based on eligibility of the firm as per criteria given this Appendix. Tenderer/bidder will be informed regarding non-validation of his technical bid assigning reasons therefore through tender evaluation report which shall be uploaded on the website. Such tenderer, if desires, may appeal to the next higher Engineer Authority (NHEA) viz HQ Commander Works Engineer on email id brlylz3-mes@gov.in with copy of the Accepting Officer on email before the scheduled date of opening of Finance Bid (Cover-2). NHEA shall decide the matter within a period of seven working days from the date of receipt of appeal. The decision of the Next Higher Engineer Authority (NHEA) shall be final and binding. The tenderer/bidder shall not be entitled for any compensation whatsoever for rejection of his bid.

11. In case an un-enlisted contractor is already executing works in MES, he shall not be considered eligible for the subject tender if the total value of such works is more than twice the tendering limit of the MES Class of contractor for which it is eligible. For this purpose, details of the works being executed by such a contractor shall be uploaded in the Cover-I of the bid and shall be checked/ verified by the Accepting Officer.

12. In case the BOQ is revised through the corrigendum and the bidder has failed to quote on revised BOQ (i.e he has quoted on pre revised BOQ), such bid shall be treated as willful negligence by the bidder and his quotation shall be considered non-bonafide. In such cases the lowest tender shall be determined from amongst the valid/bonafide bids only. Accepting Officer may decide whether to re-tender or consider the lowest bonafide tender for acceptance.

13. Revoking the offer or revising the rates upward or offering voluntary reduction by the lowest tenderer after opening of Cover 2 shall be considered as a willful default. For this default a penalty of an amount equal to Earnest Money shall be levied. In case of an un-enlisted tenderer. Earnest Money deposited by him shall be forfeited. In case of MES enlisted tenderer having deposited the Standing Security Bond, an amount equal to the earnest money stipulated in the NIT, shall be notified to the tenderer for depositing through MRO and consideration of such tenderer in tender evaluation for future works shall remain suspended till the aforementioned amount is deposited in the Government Treasury. No other disciplinary / administrative action shall be taken against such tenderers. In such a situation, the next lowest offer shall not be considered for acceptance. Instead, retendering shall be restored to in a transparent and fair manner and the defaulting tenderer and his related firm if any, shall not be eligible for this tender in second call or subsequent calls.

14. Tender to related firms shall not be issued simultaneously. Firms shall be termed as related, if Proprietor / one or more Partners / Directors are common. Decision of Accepting Officer on issue /deny the tender to any one of the related firms shall be final and binding.

15. Court of place from where tender has been issued shall alone have jurisdiction to decide any dispute out of or in respect of this tender. After acceptance of tender, "Condition 72- Jurisdiction of Courts" IAFW-2249 shall be applicable.

Signature of Contractor

File No. 8529/ /E8

Garrison Engineer East
Military Engineer Services
Shahjahanpur Road,
Bareilly Cantt.-243001



Offg AGE (Contracts)
For Accepting Officer

Dated May 2026